

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201501764	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 03/09/2015 7:30 PM	Location of Incident: East 63rd Street and Park Avenue	18 Mo. SOL 9/9/2016	Precinct: 19
Date/Time CV Reported Thu, 03/12/2015 5:10 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 03/12/2015 5:10 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan Odea	16557	952063	019 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Elvyn Hernandez	22205	931726	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ryan Odea	Discourtesy: PO Ryan Odea spoke rudely to § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint online with the CCRB on March 12, 2015.

On March 9, 2015, at approximately 7:30 p.m., PO Ryan Odea and PO Elvyn Hernandez of the 19th Precinct responded to East 63rd Street and Park Avenue in Manhattan to assist § 87(2)(b) who called 911 to report that he was a victim of a hit and run automobile accident. While interacting with § 87(2)(b) on the scene, PO Odea allegedly told § 87(2)(b) “Get back in your fucking car” (**Allegation A**). § 87(2)(b) then asked if this command was a lawful order to which PO Odea allegedly responded, “Yes, this is a lawful fucking order” (**Subsumed within Allegation A**). § 87(2)(b) then complied with this order and returned to his vehicle, and PO Odea and PO Hernandez left the scene (Encl. 3B). § 87(2)(b) was not arrested or issued a summons as a result of the incident.

§ 87(2)(b)'s wife, § 87(2)(b) was present inside of § 87(2)(b)'s vehicle during the incident, but she stated that she did not witness PO Odea's alleged discourtesy because it occurred outside of the vehicle (Encl. 3E).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected the mediation process § 87(2)(b). As of April 3, 2015, § 87(2)(b) had not filed a notice of claim with the City of New York (Encl. 3C). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This case is the first complaint filed by § 87(2)(b) with the CCRB, and it is PO Odea's first CCRB complaint in his three year tenure as an NYPD officer (Encl. 1A-B).

Findings and Recommendations

Identification of the Subject Officer

§ 87(2)(b) documented PO Odea and PO Hernandez's shield numbers during the incident, but § 87(2)(b) could not recall which shield number belonged to which officer (Encl. 3B-E). § 87(2)(b) described the subject officer as an overweight, middle-aged male officer with olive colored skin, and he described the witness officer as shorter than the subject officer with darker olive colored skin and a lighter build (Encl. 3B). PO Odea's skin color is lighter than PO Hernandez's skin color; he is taller than PO Hernandez; and he possesses a heavier build than PO Hernandez (Encl. 4A and Encl. 4G). In addition, PO Odea acknowledged having a conversation with § 87(2)(b) during which he requested that § 87(2)(b) return to his vehicle, and PO Hernandez stated that he witnessed this conversation but did not participate in it (Encl. 4F-M).

Allegation A – PO Ryan Odea spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Odea told him, “Get back in your fucking car,” and that PO Odea also told him that this request was a “lawful fucking order” (Encl. 3B)

PO Odea and PO Hernandez both denied making these comments (Encl. 4F-M). PO Odea stated that he could not recall the exact words that he used when requesting that § 87(2)(b) return to his vehicle, and he could not recall if he used profanity during this conversation (Encl. 4F). PO Odea and PO Hernandez also denied using profanity at any point during the incident (Encl. 4F-M). While § 87(2)(b) was present during the incident she stated that she remained inside the car and did not hear the conversation between § 87(2)(b) and the officers. The conversation took

place entirely outside the vehicle. There were no additional civilians or officers present during the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Pod: ____5____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date